

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT

IN AND FOR HILLSBOROUGH COUNTY, FLORIDA

FAMILY DIVISION

IN RE: THE MARRIAGE OF

SARAH HANSON,

Wife,

Case No.: 24-DR-1150

and

Division: A

CHRISTOPHER HANSON,

Husband,

HUSBAND/RESPONDENT'S MOTION TO VACATE, FOR  
REHEARING/RECONSIDERATION ON ORDER DENYING MOTION TO TRANSFER VENUE  
BASED ON VIOLATIONS OF HUSBAND'S CONSTITUTIONAL RIGHTS TO DUE PROCESS  
INCLUDING A FAIR AND IMPARTIAL TRIBUNAL

COMES NOW Husband, CHRISTOPHER HANSON, on his own behalf, and files this Motion for Rehearing on the Court's June 24, 2025 Order Denying Venue Transfer (DIN 204), pursuant to Fla. R. Civ. P. 1.530 and Fla. Fam. L. R. P. 12.530, and/or for reconsideration, in equity, and states:

1. Husband seeks an order vacating the Court's June 24, 2025 order, and an order granting transfer in its place or at a minimum, reconsideration, opportunity to be heard, and/or formal findings of fact relating to the constitutional concerns and Husband's allegations of discovery and ethical violations throughout, as the current order misapplies the law and violates Husband's constitutional right to a fair and impartial tribunal.

1. **The Court's June 24, 2025 Order Fails to Address Husband's due process rights and "Interest of Justice" Under Fla. Stat. § 47.122, requiring the Court vacate and enter an order granting transfer in its place.**

2. Husband's motion to transfer venue relies on Fla. Stat. § 47.122, specifically on the "in the interest of justice" prong allowing venue transfer separate and distinct from the convenience-based arguments in case law cited in the order. (DIN 183, ¶17 and DIN 204).

3. Judge Felix's order (DIN 204, p. 2, ¶C-D) misconstrues the Husband's request as a forum non conveniens challenge, focusing on inconvenience rather than the Husband's real concern: judicial bias undermining due process (DIN 183, ¶18).
4. Husband presented overwhelming, consistent, and unrefuted evidence of systemic problems within the 13<sup>th</sup> Circuit including pervasive unchecked ethical violations from Mr. Davis, his mafioso style control over what Husband's attorneys were willing to litigate, (DIN 72, 87, 88, 98, 109, 118 167, 168, 183) and consistent bias from Judge Ayers—e.g., eye-rolling during proceedings and then lying about or at least refusing to provide the evidence that would tell if she were lying about it (DIN 183, ¶77-80; Docket #183), calling Wife's counsel, Mr. Davis, a "Teddy Bear" while refusing to address undisputed ethical violations (DIN 183, ¶30; Docket #109, p. 16, L11-16), and failing to enforce even reciprocal discovery for Husband while ignoring Wife's many discovery violations aimed at concealment (DIN 183, ¶21-27; Docket #183)—creating a reasonable fear of impartiality and bias against him coming from throughout the 13<sup>th</sup> Circuit (DIN 183, ¶12).
5. Proper consideration of relevant authority requires the Court to vacate the order at DIN 204 and enter an order transferring venue to Wife's county of residence, Pasco County.

**A. Husband's Constitutional Right to an Impartial Tribunal is Once Again Implicated by this Court's Failure to Consider Husband's "Interest of Justice" and due process rights in its recent orders.**

6. The order's failure to consider Husband's "interest of justice" which is explicitly referenced in Fla. Stat. § 47.122, is another concerning fact in the clear pattern of bias against Husband and in support of the corrupt and unethical efforts to conceal discoverable information Caperton v. A.T. Massey Coal Co., 556 U.S. 868, 876 (2009), and Livingston v. State, 441 So. 2d 1083, 1087 (Fla. 1983).
7. Although Judge Ayers was disqualified post-motion, systemic bias in Hillsborough County (consistent with Husband's allegations since at least December 13, 2024) persists as demonstrated by the Court's continued refusal/failure to address discovery and ethical violations by Mr. Davis causing significant, documented harm to Husband and children. (DIN 183, ¶17, 30; Docket #98, #200, #204, 209, 210).

8. Husband just recently offered the Court detailed factual information about the nearly unbelievable violations of discovery and ethical rules from Mr. Davis and Judge Ayers both at the hearing on June 3, 2025 and in the motion filed at DIN 209. (Transcript of hearing to be provided upon receipt).
9. The Court's refusal to assist in facilitating the simple discovery issue for Husband, his sole request in all of this litigation for over a year, suggests a continuing intent to shield Mr. Davis and Wife from accountability, allowing their retaliatory motions to proceed before Husband even gets reciprocal discovery.
10. The level of unfairness in the 13<sup>th</sup> Circuit's handling of this matter, which has allowed the ethical and discovery violations throughout while providing active cover, demonstrates deep bias at a minimum and is concerning for much worse. (DIN 72, 87, 88, 98, 109, 118 167, 168, 183, 192, 198, 200, 204, 209, 210).
11. The appearance of bias—e.g., Judge Ayers's dismissive conduct (DIN 183, ¶177-80) and leniency toward Mr. Davis, and now the failure to consider Husband's interest of justice (DIN 183, 204) and disparate treatment of Husband's request for an emergency hearing and Ms. Hodz's request, (DIN 72, 87, 88, 98, 109, 167, 168, 183, 209, 210))—requires relief in the form of transfer to uphold judicial integrity.

**B. The Court's failure to consider Husband's Constitutional rights and perform the appropriate analysis in balancing husband's interest in justice with any state interest in the current venue statute, requires vacating the order and entering one granting transfer in its place.**

12. The Court must weigh the state's interest in enacting Fla. Stat. § 47.011's venue rules against the equitable flexibility and due process considerations required under Fla. Stat. § 47.122, and the Florida and US Constitutions.
13. Mathews v. Eldridge, 424 U.S. 319, 335 (1976), the U.S. Supreme Court articulated a three-part balancing test to assess whether a statutory procedure satisfies procedural due process:
  - The private interest affected by the official action;
  - The risk of an erroneous deprivation of that interest under the current procedures, and the probable value of additional or substitute safeguards;

- The government's interest, including the function involved and the burdens of alternative procedures.

14. The private interest at stake is Husband's right to due process, something that the Court specifically ignores in its analysis.

15. Given the Court's refusal to hold Mr. Davis accountable for his unethical conduct and the expanding impact that continues to have in eroding any sense of fairness and justice, is extremely solid and requires real consideration by this Court.

16. The risk of an erroneous deprivation of that interest under the current procedures involves the health and welfare of two young children who've already experienced a full year of unnecessary conflict based on systemic problems within the 13<sup>th</sup> Circuit. (DIN 209, 210).

17. Despite extensive evidence of increasing weaponization of the children in this divorce action, the 13<sup>th</sup> Circuit refuses to act nor even make any findings of fact relating to Mr. Davis's undisputed, unethical conduct, rendering this another strong consideration in favor of transfer.

18. Proper consideration of the state interest, the third prong, demonstrates that the Supreme Court has already answered this question – there is no legitimate state interest in protecting a litigant from a transfer of venue to her county of residence. Goedmakers v. Goedmakers, 520 So. 2d 575, 577-78 (Fla. 1988).

19. The County where a party resides, is an appropriate venue for transitory actions like the present one. Id.

20. The Goedmakers decision, based on a previous, but similar version of the current statute, recognizes that divorce's transitory nature permits venue changes when fairness is at stake, specifically referencing the County of residence for a defendant in such proceedings.

21. Husband resides in Hillsborough County (DIN 79, ¶13), but Pasco County, is a reasonable, more convenient venue for Wife as she currently resides in Pasco County.

22. Husband's willingness to transfer venue farther away to avoid the systemic bias in Hillsborough County provides additional credibility and support for his position.

23. The Court's order focusing on Hillsborough County (DIN 204, p. 3, ¶F) completely disregards Husband's bias allegations and due process rights effectively trapping him and his family under a Courthouse that vehemently opposes him and sole objective that Mr. Davis has successfully and corruptly obstructed for over a year under the 13<sup>th</sup> Circuit.

II. **Wife's objection to transfer to Pasco County, despite her residence there, suggests "forum shopping" type motivations and raises further concerns over the preferential treatment, bias in favor of Mr. Davis, and systemic problems within the 13th Circuit.**

24. The Wife's objection to transferring venue to Pasco County, her residence, lacks legitimate basis and suggests reliance on Hillsborough County's biased environment (DIN 183, ¶15).

25. Goedmakers analysis cautioning against forum shopping (520 So. 2d at 578), supports overruling Wife's objection based on her preference for Hillsborough County given Mr. Davis's favorable treatment including complete lack of accountability for ethical and discovery violations (DIN 183, ¶15, 36; Docket #109, p. 16, L11-16).

26. Ethical violations continue and expand in this case, causing further damage to the children involved while neither Wife, Mr. Davis, nor Judge Ayers have ever refuted Husband's bias and ethical violation claims throughout the record.

27. The relevant facts and law require overruling Wife's objections, vacating the order, and granting the transfer to Pasco County.

III. **The Court's Reliance on McGee and Vitale Is Erroneous as those cases lack the constitutional concerns raised in the present case before this Court.**

28. Judge Felix's order (DIN 204, p. 2, ¶ID) improperly relies on McGee v. McGee, 145 So. 3d 955 (Fla. 1st DCA 2014), and Vitale v. Vitale, 994 So. 2d 1242 (Fla. 4th DCA 2008), to deny transfer, compounding the error referenced above in failing to do the constitutional analysis.

29. **Distinction from Forum Non Conveniens** - McGee and Vitale address forum non conveniens, focusing on inconvenience, not bias and due process rights under Husband's interest in justice (DIN 183, ¶18).

30. Husband's allegations and evidence raise clear constitutional issues under Caperton and Livingston, rendering McGee and Vitale inapplicable (DIN 183, ¶25-26).

31. Additionally and alternatively, the cases the Court cites in the June 24, 2025 order are **Non-Binding Precedent**.

32. McGee (1st DCA) and Vitale (4th DCA) are not controlling in the Second District, where this Court sits, unlike Goedmakers (Fla. 1988) which support venue flexibility and impartiality (DIN 183, ¶18, 12, 23).

**IV. Transfer Is Essential return this case so Justice may "reappear" within the 13<sup>th</sup> Circuit which has included so many actions from multiple lawyers to create a truly shocking "appearance" as to Justice's current status here.**

33. The Court's June 24, 2025 order (DIN 204) misapplies McGee and Vitale, overlooks the "interest of justice" under Fla. Stat. § 47.122, and continues to violate Husband's due process rights.

34. Goedmakers supports transfer to Pasco County, where Wife resides (520 So. 2d at 577-78).

35. Wife's opposition and the systemic bias in Hillsborough favoring Mr. Davis (DIN 183, ¶15, 13-16) further support transfer to protect the Husband's rights, the children's welfare, and the appearance of Justice. Under proper constitutional analysis.

36. There is simply no good faith nor rational basis why the Legislature would create a jurisdictional trap where irrespective of bias and even the complete demolition of justice, litigants can truly never escape a given Courthouse's dominion over them.

37. Such an interpretation is nonsensical and directly conflicts with Goedmakers which supports venue lying where Wife resides under these facts, Pasco County.

38. There is no rational state interest in preventing a litigant, Husband, from successfully finding venue, on a transitory suit, this divorce, in the venue where the opposing party resides.
39. This is the controlling precedent and the Court should transfer jurisdiction to Pasco County immediately.
40. Specific findings of fact are necessary regarding discovery and ethical violations at the heart of Husband's due process arguments to allow for meaningful appellate review.
41. Failing to make such findings of fact will likely continue to support Wife's delay, harass, and conceal strategy by prolonging the appellate process.
42. At a minimum, the Court should vacate the June 24, 2024 order, and issue a new order properly considering the facts and relevant law.

WHEREFORE, the Husband respectfully requests that this Court:

- A. Vacate the June 24, 2025 order
- B. Transfer venue to Pasco County or another neutral venue;
- C. Deny the Wife's request for attorney's fees;
- D. Award the Husband attorney's fees for this motion;
- E. Or in the alternative, make specific findings of fact regarding discovery and ethical violations at the heart of Husband's due process arguments, perform the appropriate analysis under Matthews, and issue a new order properly considering the facts and relevant law.
- F. And/or schedule an emergency hearing to address these and the issues raised in the separate motion for emergent relief ASAP.
- G. Grant such other relief as the Court deems just and proper. DATED: July 3, 2025 /s/

/s/Christopher Hanson

Christopher Hanson

Florida Bar #44094

Self-Represented Husband